

Krishna Tyagi v. U.P.P.C.L.

High Court of Judicature at Allahabad · Division Bench · 12 February 2015 · Writ-C No. 6013 of 2015 · **Writ dismissed; relegated to clause 6.5 billing objections**

HEADNOTE

A writ challenging electricity bills was dismissed because basic questions of fact were involved. Following Writ-C No. 6793 of 2015, the petitioners were relegated to the statutory alternative remedy of raising billing objections under clause 6.5 of the Electricity Supply Code, 2005. Authorities are expected to deal with such objections in accordance with law.

FACTUAL SUMMARY

Krishna Tyagi and eighteen others challenged electricity bills in a writ against Uttar Pradesh Power Corporation Ltd. and others. Their counsel said the dispute matched Writ-C Nos. 11961 of 2012 and 7651 of 2014, in which this Court had already passed orders. Respondents showed that a like petition, Writ-C No. 6793 of 2015, had been dismissed on 5 February 2015, relegating those consumers to the statutory remedy under the Electricity Supply Code, 2005, for objections to bills of Dakshinanchal Vidyut Vitran Nigam Ltd., Agra.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Where electricity bills are challenged and basic questions of fact are involved, the writ is dismissed and consumers are relegated to the statutory alternative remedy of raising objections under clause 6.5 of the Electricity Supply Code, 2005; upon such objections being raised, the authorities are expected to deal with them in accordance with law. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging electricity bills was dismissed because basic questions of fact were involved. Following Writ-C No. 6793 of 2015, the petitioners were relegated to the statutory alternative remedy of raising billing objections under clause 6.5 of the Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILLS IN QUESTION

left to clause 6.5 objections; authorities to deal in accordance with law ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Writ-C No. 6793 of 2015 Writ-C No. 6793 of 2015 (order dated 05.02.2015)			1	Referred
Writ-C No. 11961 of 2012 Writ-C No. 11961 of 2012			1	Referred
Writ-C No. 7651 of 2014 Writ C No 7651 of 2014			1	Referred

